

File No.: PS/00599/2022

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure conducted by the Spanish Agency for Data Protection and based on the following BACKGROUND

From the actions taken by the Spanish Agency for Data Protection, and based on the following FACTS

FIRST: Mr. A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on July 30, 2022. The complaint is directed against Mr. B.B.B., regarding the installation of a video surveillance system located at ***ADDRESS.1, with indications of a possible violation of the provisions of personal data protection regulations.

The reasons supporting the complaint are as follows:

At the aforementioned address, "there is a house and a pavilion with numerous cameras pointing at a path that provides access to the public pools of the municipality, in addition to other public areas. This person has been warned multiple times to move those cameras, and he has ignored it. For the privacy of the neighbors, we request that you mediate for their removal, as there are comments that these images of people going to the pool are being shown."

Two photographs are provided, one of a house and another of the pavilion, showing the areas to which the cameras are directed.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and the Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to Mr. B.B.B. for him to analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was received on September 13, 2022, by Mr. C.C.C., as noted in the acknowledgment of receipt in the file.

No response has been received to this forwarding letter.

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THIRD: On October 18, 2022, a request was made to the State Agency for Tax Administration (hereinafter, AEAT), under Article 52.1 of the LOPDGDD, for the NIF of Mr. B.B.B., indicating ***ADDRESS.1 as a possible address.

On the same day, AEAT responded that "according to the data in the Database of the State Agency for Tax Administration, it is communicated that the requested data could not be obtained with the information provided."

On October 18, 2022, a query was made to the service "Query of properties and real estate" of the Cadastre, where it is stated that the owner of the property located at ***ADDRESS.1 is Mr. C.C.C. with NIF ***NIF.1 (hereinafter, the respondent).

FOURTH: On October 30, 2022, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FIFTH: On January 17, 2023, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the respondent, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), for the alleged infringement of Article 5.1.c) of the GDPR, classified in Article 83.5 of the GDPR.

SIXTH: The aforementioned initiation agreement was notified in accordance with the rules established in the LPACAP, and Mr. B.B.B. submitted a written statement on February 9, 2021, requesting "that

the complaint against C.C.C., who is XX years old, be withdrawn, as I, B.B.B., assume all actions.”
SEVENTH: On February 21, 2023, the instructor of the procedure decided to carry out the following evidence:

- To consider the complaint filed by A.A.A. and its documentation, along with its annexed documentation, as reproduced, as well as the documents obtained and generated during the admission phase of the complaint that are part of procedure AT/03700/2022.
- To consider the allegations to the initiation agreement of the referenced sanctioning procedure, submitted by B.B.B., and the accompanying documentation as reproduced.
- To require Mr. B.B.B.:
 - a) In the event that the allegations were submitted on behalf of C.C.C., proof of such representation by any valid means in law, in accordance with Article 5.4 of the LPACAP.
 - b) In the event that Mr. B.B.B. is responsible for the installation of the video surveillance system located at ***ADDRESS.1, a document evidencing such circumstance.

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c) Indication of the number of cameras in the surveillance system, providing photographs of all these devices, as well as photographs of the monitor, mobile screen, or equivalent system used for viewing the images, in which the areas within the field of vision of the cameras can be appreciated.

To the aforementioned requirement, which was notified to Mr. B.B.B. on February 24, 2023, in accordance with the rules established in the LPACAP, no response has been given.

EIGHTH: On June 27, 2023, a proposal for resolution was made, proposing that the Director of the Spanish Agency for Data Protection sanction C.C.C., with NIF ***NIF.1, for an infringement of Article 5.1.c) of the GDPR, classified in Article 83.5 of the GDPR, with a fine of 300 euros.

Furthermore, it is proposed that the Director of the Spanish Agency for Data Protection order C.C.C., with NIF ***NIF.1, to comply with Article 58.2.d) of the GDPR, within ten working days from the date on which the resolution in which this is agreed is notified to him, to prove that he has proceeded to remove the camera or video camera system from its current location or to reorient it, in such a way that the viewing of the images observed evidences that the public road is not captured.

The aforementioned proposal for resolution was notified to the defendant party, in accordance with the rules established in the LPACAP, on July 11, 2023, without any allegations being presented in response.

From the actions carried out in the present procedure and the documentation in the file, the following has been established:

PROVEN FACTS

FIRST: In the property located at ***ADDRESS.1, there is a video surveillance system composed of three cameras located outside a dwelling and two cameras located on the façade of a warehouse.

SECOND: The owner of the property located at ***ADDRESS.1 is Mr. C.C.C. with NIF ***NIF.1.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), to each supervisory authority and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Allegations to the initiation agreement

In response to the allegations presented by Mr. B.B.B. requesting the withdrawal of the complaint filed against the defendant party, as he assumes all actions, it should be noted that these cannot be evaluated, since Mr. B.B.B. has not proven that he holds representation of the defendant party by any valid means in law, in accordance with Article 5.4 of the LPACAP, nor that he is responsible for the installation of the video surveillance system subject to this sanctioning procedure.

III

The image is a personal data

The physical image of a person, according to Article 4.1 of the GDPR, is a personal data and its protection, therefore, is subject to this Regulation. Article 4.2 of the GDPR defines the concept of "processing" of personal data.

The images generated by a system of cameras or video cameras are personal data, so their processing is subject to data protection regulations.

It is, therefore, pertinent to analyze whether the processing of personal data (image of individuals) carried out through the reported video surveillance system is in accordance with the provisions of the GDPR.

IV

Infringement committed

Regarding the processing for video surveillance purposes, Article 22 of the LOPDGDD establishes that individuals or legal entities, public or private, may carry out the processing of images through camera or video camera systems for the purpose of preserving the safety of individuals and property, as well as their facilities.

The processing of personal data is subject to the other principles of processing contained in Article 5 of the GDPR. We will highlight the principle of data minimization contained in Article 5.1.c) of the GDPR, which states that personal data shall be "adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed."

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This means that in a specific treatment, only relevant personal data that is pertinent and strictly necessary to fulfill the purpose for which it is processed may be handled. The treatment must be adjusted and proportional to the intended purpose. Relevance in the processing of data must occur both at the time of data collection and in the subsequent processing of the same.

In accordance with the above, the processing of excessive data must be restricted or the data must be deleted.

The application of the data minimization principle in the context of video surveillance implies that images of public roads cannot be captured, since the processing of images in public places, unless there is government authorization, can only be carried out by the Security Forces and Corps.

On some occasions, for the protection of private spaces where cameras have been installed on facades or indoors, it may be necessary to record a portion of the public road to ensure the purpose of security.

That is to say, cameras and video cameras installed for security purposes may not obtain images of the public road unless it is essential for that purpose or it is impossible to avoid it due to their location. In such extraordinary cases, the cameras may only capture the minimum portion necessary to preserve the safety of persons and property, as well as their facilities.

Under no circumstances will the use of surveillance practices beyond the environment subject to the installation be permitted, and in particular, it must not affect surrounding public spaces, adjacent buildings, and vehicles other than those accessing the monitored space.

Installed cameras may not capture images of third-party private spaces and/or public spaces without duly justified cause, nor may they affect the privacy of passersby freely moving through the area.

Therefore, the placement of cameras directed towards the private property of neighbors with the intention of intimidating them or affecting their private sphere without justified cause is not permitted.

Images may also not be captured or recorded in spaces owned by third parties without the consent of their owners, or, where applicable, of the individuals present in those spaces.

Furthermore, it is disproportionate to capture images in private spaces, such as changing rooms, lockers, or rest areas for workers.

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V

Obligations regarding video surveillance

In accordance with the above, the processing of images through a video surveillance system, to be compliant with current regulations, must meet the following requirements:

1.- Individuals or legal entities, public or private, may establish a video surveillance system for the purpose of preserving the safety of persons and property, as well as their facilities.

It must be assessed whether the intended purpose can be achieved in a less intrusive manner for the rights and freedoms of citizens. Personal data should only be processed if the purpose of the processing cannot reasonably be achieved by other means (consideration 39 of the GDPR).

2.- The images obtained may not be used for a subsequent purpose incompatible with the one that motivated the installation of the video surveillance system.

3.- The duty to inform the affected parties as provided in Articles 12 and 13 of the GDPR, and Article 22 of the LOPDGDD must be fulfilled.

In this regard, Article 22 of the LOPDGDD provides for a "layered information" system concerning video surveillance.

The first layer must refer, at a minimum, to the existence of the processing (video surveillance), the identity of the data controller, the possibility of exercising the rights provided in Articles 15 to 22 of the GDPR, and where to obtain more information about the processing of personal data.

This information must be contained in a device placed in a sufficiently visible location and must be provided in advance.

The information in the second layer must be available in a location easily accessible to the affected party, whether it be an information sheet at a reception, cashier, etc., placed in a visible public space or on a web address, and must refer to the remaining elements of Article 13 of the GDPR.

4.- The processing of images through the installation of camera or video camera systems must be lawful and comply with the principles of proportionality and data minimization, as previously indicated.

5.- Images may be retained for a maximum period of one month, except in cases where they must be retained to prove the commission of acts that threaten the integrity of persons, property, or facilities.

In this second case, they must be made available to the competent authority within a maximum period of 72 hours from the time knowledge of the existence of the recording was obtained.

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6.- The controller must maintain a record of activities of the processing carried out under their responsibility, which includes the information referred to in Article 30.1 of the GDPR.

7.- The controller must conduct a risk analysis or, where appropriate, a data protection impact assessment, to identify the risks arising from the implementation of the video surveillance system, evaluate them, and, where necessary, adopt appropriate security measures.

8.- In the event of a security breach affecting the processing of cameras for security purposes, whenever there is a risk to the rights and freedoms of individuals, it must be reported to the AEPD within a maximum period of 72 hours.

A security breach is understood as the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

9.- When the system is connected to an alarm center, it may only be installed by a private security company that meets the requirements set forth in Article 5 of Law 5/2014 on Private Security, of April 4.

The Spanish Data Protection Agency provides access through its website [<https://www.aepd.es>] to:

- the legislation on personal data protection, including the GDPR and the LOPDGDD (section "Reports and Resolutions" / "Legislation"),

- the Guide on the use of video cameras for security and other purposes,

- the Guide for compliance with the duty to inform (both available in the "Guides and Tools" section).

Also of interest, in the case of carrying out low-risk data processing, is the free tool Facilita (in the "Guides and Tools" section), which, through specific questions, allows the controller to assess their situation regarding the processing of personal data they carry out, and where appropriate, generate various documents, informative and contractual clauses, as well as an annex with minimum indicative security measures.

VI

Administrative Infraction

The complaint is based on the installation of a video surveillance system consisting of at least three cameras located outside a residence and two cameras located on the facade of a warehouse, both owned by the respondent and located at ***ADDRESS.1.

In the photographs provided by the complainant, it is observed:

- Regarding the cameras installed outside the residence, which has a fenced area: that one of the cameras appears, based on its position, to be oriented towards the limits of the fenced area; that another, based on the image, does not allow determining where it is focused; and regarding a third one, that due to its orientation, captures images outside its property.

- Regarding the cameras installed on the facade of the warehouse: that while the camera located on the left side of the facade appears, based on its position, to be oriented towards the access to the property, the camera situated on the right side of the image is manifestly oriented towards the outside, thus capturing images of the public road disproportionately.

It is considered that the facts presented violate what is established in Article 5.1.c) of the GDPR, which constitutes an infraction classified under Article 83.5.a) of the GDPR, which states the following:

"Violations of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9;."

For the purposes of the statute of limitations for infractions, the infraction indicated in the previous paragraph is considered very serious in accordance with Article 72.1 of the LOPDGDD, which establishes that:

"Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following infractions are considered very serious and shall prescribe after three years, which involve a substantial violation of the articles mentioned therein and, in particular, the following:

a) The processing of personal data violating the principles and guarantees established in Article 5 of Regulation (EU) 2016/679.

(...)"

VII

Sanction

The corrective powers of the Spanish Data Protection Agency, as the supervisory authority, are established in Article 58.2 of the GDPR. Among them is the authority to impose an administrative fine in accordance with Article 83 of the GDPR -Article 58.2.i-, or the authority to order the controller or processor to ensure that the processing operations comply with the provisions of the GDPR, when appropriate, in a specified manner and within a specified timeframe -Article 58.2.d-.

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According to the provisions of Article 83.2 of the GDPR, the measure provided for in Article 58.2.d) of the aforementioned Regulation is compatible with the sanction consisting of an administrative fine. In the present case, considering the facts presented, it is deemed that the sanction that should be imposed is an administrative fine. The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with Article 83.1 of the GDPR. In order to determine the administrative fine to be imposed, the provisions of Article 83.2 of the GDPR must be observed, which states:

“2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure for those provided for in Article 58, paragraph 2, letters a) to h) and j). In deciding on the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

- a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of data subjects affected and the level of damage and harm they have suffered;
- b) the intentionality or negligence in the infringement;
- c) any measures taken by the controller or processor to mitigate the damage and harm suffered by the data subjects;
- d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have implemented pursuant to Articles 25 and 32;
- e) any previous infringements committed by the controller or processor;
- f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;
- g) the categories of personal data affected by the infringement;
- h) the manner in which the supervisory authority became aware of the infringement, in particular whether the controller or processor notified the infringement and, if so, to what extent;
- i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the controller or processor in relation to the same matter, the compliance with such measures;
- j) adherence to codes of conduct under Article 40 or to approved certification mechanisms under Article 42, and
- k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.”

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Regarding item k) of Article 83.2 of the GDPR, the LOPDGDD, Article 76, “Sanctions and corrective measures,” provides:

“2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The continued nature of the infringement.
- b) The connection of the infringer's activity with the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the conduct of the affected party may have induced the commission of the infringement.
- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.
- g) Having, when not mandatory, a data protection officer.
- h) The voluntary submission by the controller or processor to alternative dispute resolution

mechanisms, in cases where there are disputes between them and any data subject.”

The balance of the circumstances considered, regarding the infringement committed by violating the provisions of Article 5.1.c) of the GDPR, allows for the imposition of a fine of €300 (three hundred euros).

VIII

Measures

Article 58.2 d) of the GDPR, according to which each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specified manner and within a specified time frame.”

The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided for in Article 83.2 of the GDPR.

In the present case, the party being claimed must proceed, within ten days from the receipt of this resolution, to:

- Certify that they have proceeded to remove the camera or video camera system from the current location or to reorient it, in such a way that the viewing of the images observed evidences that the public road is not captured.

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It is warned that failure to comply with the requirements of this body may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its articles 83.5 and 83.6, and such conduct may lead to the initiation of further administrative sanctioning procedures.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection

RESOLVES:

FIRST: TO IMPOSE on C.C.C., with NIF ***NIF.1, for an infringement of article 5.1.c) of the GDPR, classified in article 83.5 of the GDPR, a fine of 300.00 euros (THREE HUNDRED euros).

SECOND: TO ORDER C.C.C., with NIF ***NIF.1, that pursuant to article 58.2.d) of the GDPR, within ten days, prove that it has proceeded to comply with the removal of the camera or video camera system from the current location or its reorientation, in such a way that the viewing of the images observed demonstrates that the public thoroughfare is not captured.

THIRD: TO NOTIFY this resolution to C.C.C.

FOURTH: To warn the sanctioned party that they must pay the imposed sanction once this resolution becomes executive, in accordance with the provisions of article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, to the restricted account no.

IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once it is executive, if the date of executive status falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day.

In accordance with the provisions of article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative route in accordance with article 48.6 of the LOPDGDD, and in accordance with the provisions of article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution at C/ Jorge Juan, 6
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or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of article 90.3 a) of the LPACAP, the firm resolution in the administrative route may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by writing to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation proving the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension terminated.

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